

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                           |                           |                                                       |                                               |                                 |
|---------------------------------------------------|-------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Daniel Smith                     | Team:<br>Squad #16                                                                        | CCRB Case #:<br>201600932 | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                                           |                           | <input type="checkbox"/> Abuse                        | <input checked="" type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 02/03/2016 5:00 PM | Location of Incident:<br>63rd Road between 98th Street and 98th Place                     | 18 Mo. SOL<br>8/3/2017    | Precinct:<br>112                                      |                                               |                                 |
| Date/Time CV Reported<br>Thu, 02/04/2016 2:18 PM  | CV Reported At:<br>CCRB                                                                   | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 02/04/2016 2:18 PM |                                               |                                 |
| <b>Complainant/Victim</b>                         | <b>Type</b>                                                                               | <b>Home Address</b>       |                                                       |                                               |                                 |
|                                                   |                                                                                           |                           |                                                       |                                               |                                 |
| <b>Witness(es)</b>                                | <b>Home Address</b>                                                                       |                           |                                                       |                                               |                                 |
|                                                   |                                                                                           |                           |                                                       |                                               |                                 |
| <b>Subject Officer(s)</b>                         | <b>Shield</b>                                                                             | <b>TaxID</b>              | <b>Command</b>                                        |                                               |                                 |
| 1. POM Shahid Shah                                | 03901                                                                                     | 947486                    | 112 PCT                                               |                                               |                                 |
| <b>Officer(s)</b>                                 | <b>Allegation</b>                                                                         |                           |                                                       | <b>Investigator Recommendation</b>            |                                 |
| A . POM Shahid Shah                               | Off. Language: Police Officer Shahid Shah made remarks to § 87(2)(b) based upon religion. |                           |                                                       | A . Unsubstantiated                           |                                 |
| B . POM Shahid Shah                               | Discourtesy: Police Officer Shahid Shah acted discourteously toward § 87(2)(b)            |                           |                                                       | B . Unsubstantiated                           |                                 |

### Case Summary

On February 4, 2016, § 87(2)(b) filed this complaint with the Civilian Complaint Review Board via telephone.

On February 3, 2016, at approximately 5:00 p.m., § 87(2)(b) was pulled over by PO Shahid Shah of the 112<sup>th</sup> Precinct while driving northbound on 63<sup>rd</sup> Road between 98<sup>th</sup> Street and 98<sup>th</sup> Place, in Queens. The following allegations were made: PO Shah asked for § 87(2)(b)'s license and registration, and then began pointing at the rosary that hung from § 87(2)(b)'s rear-view mirror. PO Shah said to § 87(2)(b) "Take it down, it's disgusting" or "Take it down, it's a disgrace" (**Allegation A**). PO Shah then took § 87(2)(b)'s license and registration and returned to his vehicle. After several minutes, PO Shah returned to § 87(2)(b)'s window with a summons. § 87(2)(b) disagreed with PO Shah on whether the summons was justified, and PO Shah responded by throwing the license, registration, and a summons into § 87(2)(b)'s vehicle (**Allegation B**). PO Shah walked away and both men left the scene in their respective vehicles.

§ 87(2)(b) was given summons # § 87(2)(b) by PO Shah for § 87(2)(b) (Board Review 01).

When § 87(2)(b) filed his complaint, he indicated that he believed that he had been racially profiled. § 87(2)(g).

There is no video evidence in this case.

### Mediation, Civil and Criminal Histories

- This complaint was ineligible for mediation, as § 87(2)(b) believed that he was profiled during this incident.
- § 87(2)(b) was issued Summons # § 87(2)(b) for § 87(2)(b). A request is pending with the Department of Motor Vehicles for the disposition of this summons (Board Review 06).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- This closing report has been submitted pending a response from the NY Comptroller's Office regarding a Notice of Claim filed by § 87(2)(b) (Board Review 03).

### Civilian and Officer CCRB Histories

- This is the first complaint filed with the CCRB by § 87(2)(b)
- PO Shah has been a member of service for over seven years and has had no previous CCRB complaints made against him.

### **Findings and Recommendations**

#### **Allegation A – Offensive Language: Police Officer Shahid Shah made remarks to § 87(2)(b) based upon religion.**

§ 87(2)(g). In his statement to the CCRB, § 87(2)(b) (Board Review 04) stated that during a vehicle stop, PO Shah pointed to a rosary that hung from the rear-view mirror in his vehicle. § 87(2)(b) did not understand why PO Shah was pointing at the rosary and asked PO Shah if there was something wrong with it. PO Shah continued to point at the rosary and told § 87(2)(b) that the rosary was obstructing his view. § 87(2)(b) said that it was not obstructing his view and asked why he would have to take it down. PO Shah then said either, “Take it down, it’s disgusting” or “Take it down, it’s a disgrace.”

PO Shah, in his statement to the CCRB on March 15, 2016 (Board Review 05) stated that he did not say, “Take it down, it’s disgusting” or “Take it down, it’s a disgrace.” PO Shah stated that he did not observe any religious artifacts in § 87(2)(b)’s vehicle and that there was no discussion of religion with § 87(2)(b). PO Shah stated that he did not see anything hanging from § 87(2)(b)’s rear-view mirror and that there was no discussion of any object obstructing § 87(2)(b)’s view.

Although § 87(2)(b) indicated that his mother was present in the vehicle with him, he refused to provide identifying or contact information for her, saying that she did not speak English and did not want to participate in the investigation.

§ 87(2)(g)  
Therefore, it is recommended that **Allegation A** be **Unsubstantiated**.

#### **Allegation B – Discourtesy: Police Officer Shahid Shah acted discourteously toward § 87(2)(b)**

§ 87(2)(g)  
§ 87(2)(b) was seated in his vehicle when (Board Review 04) PO Shah returned to his vehicle after taking his driver’s license and vehicle registration. § 87(2)(b) disagreed with PO Shah’s justification for giving him a summons. PO Shah said, “Go to court, you’re not gonna win” before throwing the summons, license, and vehicle registration into § 87(2)(b)’s vehicle through the driver’s side window. These documents landed on the center console between the driver’s seat and the front passenger seat.

PO Shah (Board Review 05) stated that he returned to § 87(2)(b)'s vehicle after writing the summons. PO Shah stated that he handed the summons, driver's license, and registration back to § 87(2)(b). PO Shah stated that § 87(2)(b) took these documents willingly and that he did not throw these documents into § 87(2)(b)'s vehicle.

§ 87(2)(g)  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_. Therefore, it is recommended that **Allegation B** be **Unsubstantiated**.

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Squad:

Investigator: \_\_\_\_\_  
Signature Print Date

Squad Leader: \_\_\_\_\_  
Title/Signature Print Date

Reviewer: \_\_\_\_\_  
Title/Signature Print Date